

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #02	CCRB Case #: 201604330	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 05/12/2016 6:45 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 11/12/2017	Precinct: 103		
Date/Time CV Reported Sat, 05/14/2016 3:17 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/18/2016 10:50 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Perretta	26248	937276	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Srour	04996	949690	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Stephen Perretta	Off. Language: Police Officer Stephen Perretta made remarks to § 87(2)(b) based upon race.	A . Unsubstantiated
B . POM Stephen Perretta	Off. Language: Police Officer Stephen Perretta made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated

Case Summary

At approximately 5:30 p.m. on May 12, 2016, § 87(2)(b) called 9-1-1 and requested assistance at her home, § 87(2)(b) in Queens, because her neighbor had dumped debris into her backyard. At approximately 6:45 p.m. Police Officers Stephen Perretta and Nicholas Srou of the 103rd Precinct responded to § 87(2)(b)'s home. They spoke with the neighbor, § 87(2)(b) who denied that she had put the debris in § 87(2)(b)'s backyard. Police Officer Stephen Perretta allegedly stated, "You Indian people need to deal with this yourselves" (**Allegation A**).

§ 87(2)(b)'s son, § 87(2)(b) arrived and walked to the officers' vehicle. He asked what happened. Police Officer Perretta allegedly began clapping his hands and said, "You Indian people need to take care of this yourselves" (**Allegation B**). § 87(2)(b) walked back to his mother's house and the officers drove away.

No video footage was obtained for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was presented with and refused mediation § 87(2)(b)
- A request for a Notice of Claim search relating to this incident has been sent to the New York City Comptroller's Office and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) and § 87(2)(b) (BR03).
- Police Officer Perretta has been a member of the NYPD for eleven years and has had one previous CCRB allegation in one case with no substantiated allegations.

Potential Issues

- According to § 87(2)(b) and § 87(2)(b) there were several neighbors who witnessed this incident, though they were unable to identify them. CCRB investigators conducted a canvass in the neighborhood on June 3, 2016. They were, however, unable to find any witnesses or video footage.
- According to § 87(2)(b) and § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) daughter, was present during this incident. The investigation made repeated attempts to reach § 87(2)(b) but was unable to obtain a statement from her. § 87(2)(b) did not follow up on a promise to provide her cell phone number.
- § 87(2)(b) identified her Home Health Aide, who was present for this incident, as a woman named § 87(2)(b) but refused to provide any further information about her.

Findings and Recommendations

Explanation of Subject Officer Identification

- Police Officers Perretta and Srou both were identified by the Internal Affairs Bureau as subject officers. Both officers acknowledged their involvement in this incident when interviewed at the CCRB. § 87(2)(b) and § 87(2)(b) § 87(2)(b) described the subject officer as much bigger than his partner. § 87(2)(b) described the officer who spoke to her as "big." § 87(2)(b) identified the witness officer as having hazel eyes. Police Officer Srou is 5'11 tall and has hazel eyes. Police Officer Perretta is 6'3" tall and has blue eyes. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority – Police Officer Stephen Perretta made remarks to § 87(2)(b) based on race.

The original complaint was filed by § 87(2)(b) on May 14, 2016, with the Internal Affairs Bureau. A telephone statement was obtained from § 87(2)(b) on May 20, 2016. § 87(2)(b) was interviewed at the CCRB on May 23, 2016. A follow-up telephone statement was obtained from § 87(2)(b) on May 25, 2016. Telephone statements were obtained from § 87(2)(b) and her Home Health Aide § 87(2)(b) on May 25, 2016. § 87(2)(b) and § 87(2)(b) were interviewed at § 87(2)(b) in Queens on June 3, 2016. Police Officers Perretta and Srour were interviewed on June 13, 2016.

§ 87(2)(g)

§ 87(2)(b) In her telephone statement, § 87(2)(b) alleged that after she showed the officers the garbage in her back yard, Police Officer Perretta told her that “you Indian people don’t have anything to do.” In her verified statement, she alleged that Police Officer Perretta said, “You Indian people, always with this stupid nonsense.” In her telephone statement, § 87(2)(b) stated that Police Officer Perretta said, “You Indian people make problems all of the time.” In her verified statement, she alleged that Police Officer Perretta said, “You Indian people, always with problems...We have better things to do.” § 87(2)(b) who was sitting on her stoop approximately fifteen feet away, stated that the officers were respectful to § 87(2)(b) that they did not say “you Indian people,” and that they did not make any racial remarks.

Police Officers Perretta and Srour both denied that either of them used the term “you people” or “you Indian people.” Both officers acknowledged that they walked with § 87(2)(b) to view the debris in the backyard, then spoke with the neighbor, § 87(2)(b) and then instructed § 87(2)(b) and § 87(2)(b) either be nice to each other or leave each other alone.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be **Unsubstantiated**.

Allegation B – Abuse of Authority – Police Officer Stephen Perretta made remarks to § 87(2)(b) based on race.

§ 87(2)(b)

§ 87(2)(b) alleged that when he spoke to the officers in their police vehicle, that Police Officer Perretta made a comment regarding “you people,” “You Indian people,” and/or “You Indians.”

In his Internal Affairs Bureau intake call, § 87(2)(b) stated that the officer said, “You people.” In his first telephone statement to the CCRB, he said that Police Officer Perretta said, “You Indians need to work this out,” and used the term, “You people.” In his verified statement,

he said that Police Officer Perretta said, “You Indians need to work this out,” and, “We don’t have time for you Indians, you guys need to work this out yourselves.” In his follow-up telephone statement to the CCRB, he said that Police Officer Perretta asked, “Why don’t you Indians work this out?” No witnesses to this incident overheard the details of the conversation between § 87(2)(b) and the officers.

Police Officers Perretta and Srour both denied that either of them used the term “you people” or “you Indian people.” Both officers acknowledged speaking with § 87(2)(b) while they were leaving, that they explained the circumstances to him, and that they informed him that the situation did not call for a summons to be issued.

§ 87(2)(g)
it is recommended that **Allegation B** be **Unsubstantiated**.

Squad: 2

Investigator:	_____ Signature	_____ Print	_____ Date
Squad Leader:	_____ Title/Signature	_____ Print	_____ Date
Reviewer:	_____ Title/Signature	_____ Print	_____ Date